



Province of Alberta

PERSONS WITH DEVELOPMENTAL
DISABILITIES SERVICES ACT

**PERSONS WITH DEVELOPMENTAL
DISABILITIES SERVICES REGULATION**

Alberta Regulation 228/2013

With amendments up to and including Alberta Regulation 115/2019

Current as of September 26, 2019

Office Consolidation

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Note

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(Consolidated up to 115/2019)

ALBERTA REGULATION 228/2013

Persons with Developmental Disabilities Services Act

**PERSONS WITH DEVELOPMENTAL DISABILITIES
SERVICES REGULATION**

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Schedule

Interpretation

1(1) In this Regulation, “proper notice of appeal” means a notice of appeal that has been determined by the Minister under section 5(1) to have been properly completed and that the decision sought to be appealed can be appealed.

(2) In this Regulation, a reference in a provision to the Minister includes a person designated by the Minister to act in the Minister’s place.

Exemption from mediation and appeal

2 A decision to

- (a) refuse to enter into a contract with a service provider,
- (b) terminate a contract with a service provider, or
- (c) amend a contract with a service provider

is exempt from mediation and appeal.

Mediation

3(1) Prior to appealing a decision of the director, an individual may request in writing that the matter be referred to a mediator.

- (2) On receipt of a request under subsection (1), the director shall appoint a mediator.
- (3) On being appointed, a mediator must contact the affected parties to arrange commencement of mediation as soon as is reasonably practicable.
- (4) Unless otherwise agreed to between the parties, the parties shall share equally the fees and expenses of the mediator.
- (5) If the mediator cannot effect an agreement within 30 days from the date of the appointment of the mediator or within any longer period of time agreed to by the parties, the mediator may
 - (a) recommend terms for settlement to the parties for them to accept or reject within a time fixed by the mediator, or
 - (b) notify the parties that no recommendation under clause (a) will be made and that the individual may, within 30 days of receiving the mediator's notice, appeal the decision of the director in accordance with section 4.
- (6) No action lies against a person who conducts a mediation in good faith under this section for any act done or omitted to be done with respect to the mediation.

Notice of appeal

- 4(1) The form of a notice of appeal is set out in the Schedule.
- (2) A notice of appeal shall be addressed to the Minister.

Appeals

- 5(1) On receipt of a notice of appeal, the Minister shall review it to determine if the notice of appeal has been properly completed and if the decision sought to be appealed can be appealed.
- (2) Repealed AR 202/2016 s2.
- (3) The Minister must set a date for hearing the appeal,
 - (a) within 45 days after a proper notice of appeal has been received, or
 - (b) within 30 days after mediation has ended and a proper notice of appeal has been received.
- (4) A hearing before an appeal panel may be held in private unless the appeal panel determines otherwise, taking into account the wishes of the applicant and the guardian or agent, if applicable.

AR 228/2013 s5;202/2016

Appeal decision

6(1) Notice of the decision of the appeal panel, including reasons for the decision, shall be in writing and provided as soon as possible to the person who signed the notice of appeal and to the director.

(2) A summary of the decision of the appeal panel may be published in a manner determined by the Minister, but in no case may the summary disclose the name of any appellant, including a guardian or agent, or other individual affected by the decision.

Repeal

7 The *Persons with Developmental Disabilities Community Governance (Ministerial) Regulation* (AR 181/2006) is repealed.

8 Repealed AR 115/2019 s2.

Schedule

Notice of Appeal
(section 15 of the Act)

1 My name is _____ (name)

My address is _____ (address)

My telephone number is _____ (telephone number)

2 I am (check one): ___ a person who has been affected by a decision of the director.

___ the guardian under the *Adult Guardianship and Trusteeship Act* of (name of represented adult), who is a person who has been affected by a decision of the director.

___ the agent under the *Personal Directives Act* of (name of maker of personal directive), who is a person who has been affected by a decision of the director.

3 The decision I am appealing is _____
(Set out date of decision and a summary of the decision being appealed)

I received the decision and the right to appeal on
(year/month/day)

My reasons for appealing the decision are: _____

- 4 I understand that before proceeding with a formal hearing of my appeal this matter can be referred to a dispute resolution process to attempt to resolve the matter.

___ I agree to having my appeal referred to a dispute resolution process

___ I do not agree to having my appeal referred to a dispute resolution process

(year/month/day)

(signature of person affected by the decision or guardian or agent, whichever is applicable)



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